

Tentative Rulings for May 20, 2026
Department 403

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

24CECG03272	<i>Vanessa Pompa v. Piazza Del Pane, Inc.</i> is continued to Wednesday, July 1, 2026, at 3:30 p.m. in Department <u>502</u> .
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Tentative Rulings for Department 403

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(47)

Tentative Ruling

Re:

Le v. Singh et al.

Superior Court Case No. 25CECG00342

Hearing Date:

May 20, 2026 (Dept. 403)

Motion:

Motion to Compel Production of a Privilege Log to Request for Production of Documents, Set Two from Intervenor Accredited Specialty Insurance Company

Tentative Ruling:

To grant plaintiffs Sunny Le and Alyxza Abrams's motion to compel production of a privilege log from intervenor, Accredited Specialty Insurance Company, on its response to Request for Production of Documents, Set Two. Accredited Specialty Insurance Company is directed to serve a full and complete privilege log within 10 days of service of the order by the clerk.

To impose monetary sanctions in the amount of \$1,200, against intervenor Accredited Specialty Insurance Company and its counsel of record, joint and several, in favor of plaintiffs Sunny Le and Alyxza Abrams payable within 30 days of service of the order by the clerk to counsel for plaintiffs Sunny Le and Alyxza Abrams.

**If oral argument is timely requested, it will be entertained on
Thursday, May 28, 2026, at 3:30 p.m. in Department 403.**

Explanation:

On September 25, 2025, plaintiffs Sunny Le and Alyxza Abrams (together "Plaintiffs") served written discovery on intervenor, Accredited Specialty Insurance Company ("Intervenor"), including a Request for Production of Documents, Set Two. (Kracht Decl., Ex. A.) Plaintiffs now seek a privilege Intervenor served responses on October 28, 2025 by email. (Kracht Decl., Ex. B.) Intervenor's verifications were not served until October 30, 2025. (Kracht Decl., Ex. C.) Intervenor did not produce any documents and instead objected to all of the requests, based, in part on privileges. Plaintiffs now seek a privilege log for the privileges asserted.

After complying with Fresno Superior Court Local Rule 2.1.17, Plaintiffs timely filed this motion to compel production of a privilege log pursuant to Code of Civil Procedure section 2031.240, subdivision (c)(1).

Code of Civil Procedure section 2031.240 provides, in pertinent part, that "[i]f an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response **shall** provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log." (Code Civ. Proc., § 2031.240, subd. (c)(1), emphasis added.)

"The purpose of a privilege log is to provide a specific factual description of documents in aid of substantiating a claim of privilege in connection with a request for document production. (*Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1125.) This feature of the Discovery Act prevents secret positions from being taken to justify the withholding of documents claimed to be secret." (*Roche v. Hyde* (2020) 51 Cal.App.5th 757, 814.)

"A privilege log must identify with particularity each document the responding party claims is protected from disclosure by a privilege and provide sufficient factual information for the propounding party and court to evaluate whether the claim has merit. (Code Civ. Proc., § 2031.240, subd. (b), (c); *Wellpoint Health Networks, Inc. v. Superior Court* (1997) 59 Cal.App.4th 110, 130.) The precise information required for an adequate privilege log will vary from case to case based on the privileges asserted and the underlying circumstances. In general, however, a privilege log typically should provide the identity and capacity of all individuals who authored, sent, or received each allegedly privileged document, the document's date, a brief description of the document and its contents or subject matter sufficient to determine whether the privilege applies, and the precise privilege or protection asserted." (*Catalina Island Yacht Club v. Superior Court*, *supra*, 242 Cal.App.4th at p. 1130.)

Here, privileges were lodged, for which no privilege log was provided. Moreover, Intervener refused to provide a privilege log. Intervenor's opposition attempts to justify this refusal through three principal arguments: (1) that a privilege log is not required until the Court orders one; (2) that the assertion of objections on multiple grounds eliminates the privilege log requirement; and (3) that Plaintiffs' counsel already knew the information was privileged due to the tripartite relationship. Each argument lacks merit and contradicts established California law.

Litigants may not refuse to produce a privilege log merely because a court has not ordered them to do so. As the California Supreme Court has observed, civil discovery in California is intended to be self-executing. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402.) Code of Civil Procedure section 2031.240 could not be more clear: parties have an obligation to provide sufficient factual information to permit other parties to evaluate the merits of claims of privilege and work product. (Code Civ. Proc., § 2031.240, subd. (c)(1).) The statute contains no requirement that a court order issue before a party fulfils this obligation. The requirement can either be met by stating such facts in each individual discovery response themselves or in a privilege log. Here, the responses consist of general objections as a preface, with four to six additional individualized objections. Each and every response raises the attorney-client privilege and attorney work product protection. By virtue of making these responses, Intervenor obligated itself to provide the factual explanation required by Code of Civil Procedure section 2031.240.

Second, the requirements under Code of Civil Procedure section 2031.240, subdivision (c)(1) are not waived simply because there are other objections to an answer.

Third, Intervenor's argument that Plaintiffs' awareness of the "tripartite relationship" between Intervenor, an insurance company, the defendant who is its insured, and defense counsel is irrelevant. The purpose of privilege logs is to provide "a specific factual

description of documents ... to permit a judicial evaluation of the claim of privilege." (*Hernandez v. Superior Court* (2003) 112 Cal.App.4th 285, 292, italics added.)

Accordingly, the motion is granted. Intervenor is ordered to provide a privilege log with respect to its response to Request for Production of Documents, Set Two.

Furthermore, Code of Civil Procedure section 2023.010, subdivision (d), provides that failing to respond to discovery is a misuse of the discovery process. A court may impose a monetary sanction for a misuse of the discovery process. (Code Civ. Proc., §§ 2023.030, subd. (a); 2031.310, subd. (h).) Here, Intervenor has failed to produce a privilege log despite the legal obligation, and multiple requests to do so. (See Kracht Decl., ¶¶ 12-15.) Furthermore, based on the arguments above, Intervenor's arguments are without substantial justification.

Accordingly, the court imposes mandatory monetary sanctions in the amount of \$1,200, to be paid by Intervenor, and its counsel of record, joint and severally, to counsel for Plaintiffs, Silva Injury Law, Inc.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 05/19/26
(Judge's initials) (Date)

(03)

Tentative Ruling

Re: **Williams v. Afarian**
Case No. 24CECG04901

Hearing Date: May 20, 2026 (Dept. 403)

Motion: Defendant Fresno Community Hospital's Motions to Compel Initial Responses to Discovery from Plaintiffs Jason John Williams and Melvin Lamonte Williams, Sr. and Request for Monetary Sanctions

Defendants Afarian, Coelho, Fujimoto, and Herger's Motions to Compel Initial Responses to Discovery from Plaintiffs Jason John Williams, Melvin Lamonte Williams, Sr., Vicki La Chon Cole, and Barbara Aliane Williams and Request for Monetary Sanctions

Tentative Ruling:

To grant defendant Fresno Community Hospital's motions to compel plaintiffs Jason John Williams and Melvin Lamonte Williams, Sr. to provide initial responses without objections to defendant's form interrogatories, special interrogatories, and requests for production, set one. To grant defendant's request for sanctions against plaintiffs, in the amount of \$525 against each plaintiff.

To grant defendants Afarian, Coelho, Fujimoto, and Herger's motions to compel plaintiffs Jason John Williams, Melvin Lamonte Williams, Vicki La Chon Cole, and Barbara Aliane Williams to provide initial responses without objections to defendants' form interrogatories, special interrogatories, and requests for production, set one. To grant defendants' request for sanctions against plaintiffs, in the amount of \$547.50 against each plaintiff.

Plaintiffs shall serve their verified responses without objections within ten days of the date of service of this order. Plaintiffs shall pay sanctions within 30 days of the date of service of this order.

**If oral argument is timely requested, it will be entertained on
Thursday, May 28, 2026, at 3:30 p.m. in Department 403.**

Explanation:

Plaintiffs have failed to respond to any of the discovery requests of defendant Fresno Community Hospital and Medical Center, dba Community Regional Medical Center (CRMC), despite the passage of more than a year since the requests were served. All extensions of time have now expired and plaintiffs' counsel has withdrawn from representing plaintiffs, yet plaintiffs have still failed to serve any responses to any of the

The court will also grant the defendant's request for sanctions against plaintiffs, as sanctions are mandatory where a party fails to respond to discovery and the failure to respond is unjustified. (Code Civ. Proc., § 2030.290, subd. (c); 2031.300, subd. (c).) Here, plaintiffs have not made any attempt to show that their failure to respond was justified, or that other circumstances would make imposition of sanctions unjust. The requested amount of sanctions is also reasonable. Therefore, the court intends to grant sanctions of \$525 against plaintiffs Jason John Williams and Melvin Lamonte Williams and in favor of defendant CRMC. The court also intends to grant sanctions of \$547.50 against plaintiffs Jason John Williams, Melvin Lamonte Williams, Vicki La Chon Cole, and Barbara Aliane Williams in favor of defendants Afarian, Coelho, Fujimoto, and Herger.

Tentative Ruling

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(49)

Tentative Ruling

Re: ***Rexel USA, Inc. v. Charged Up Energy, Inc., et al.***
Superior Court Case No. 23CECG01531

Hearing Date: May 20, 2026 (Dept. 403)

Motion: Plaintiff's Motion to Vacate Dismissal

Tentative Ruling:

To grant. (Code Civ. Proc., § 473, subd. (b).)

**If oral argument is timely requested, it will be entertained on
Thursday, May 28, 2026, at 3:30 p.m. in Department 403.**

Explanation:

Plaintiff Rexel USA, Inc., ("Plaintiff") moves to have the dismissal of the entire case vacated and the action reinstated against Charged Up Energy, Inc., ("Charged Up") on the basis of mistake and inadvertence.

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief...shall be made within a reasonable time, in no case exceeding six months". (Code Civ. Proc., §473, subd. (b).) When determining whether a mistake or inadvertence was excusable, "the court inquires whether 'a reasonably prudent person under the same or similar circumstances' might have made the same error." (*Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, 276 citing *Ebersol v. Cowan* (1983) 35 Cal.3d 427, 435.)

On August 6, 2025, Plaintiff filed for dismissal of the case. On August 20, 2025, the court processed and notified parties of the dismissal. When drafting the request for dismissal, counsel for Plaintiff mistakenly marked the box indicating dismissal for the "Entire action of all parties and all causes." (Hassan Decl., ¶ 3.) Plaintiff did not intend to dismiss the case against Charged Up. (*Id.*, ¶ 4.) Plaintiff filed the present motion to vacate on February 9, 2026.

Plaintiff filed their motion to vacate over six months after the request for dismissal. However, this is not fatal because Plaintiff would not have been informed of their error until the dismissal was processed. Plaintiff filed the motion to vacate the dismissal within six months of when the dismissal was processed. Therefore, Plaintiff's request is timely. Plaintiff's mistake is of the type a reasonably prudent person under the same or similar circumstances might have made. Accordingly, the motion to vacate the dismissal and

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: Img on 05/19/26.
(Judge's initials) (Date)